



Overview

Wheat is the major winter crop grown in Australia with sowing starting in autumn and harvesting, depending on seasonal conditions, occurring in spring and summer. The main producing states are Western Australia, New South Wales, South Australia, Victoria and Queensland.

The majority of Australian wheat is sold overseas with Western Australia the largest exporting state. The major export markets are in the Asian and Middle East regions and include Indonesia, Japan, South Korea, Malaysia, Vietnam and Sudan.

Wheat grown for domestic consumption and feedstock is predominately produced on the east coast.

[expand all]

Mandatory Port Access Code of Conduct for Grain Export Terminals

The code of conduct—which is monitored and enforced by the Australian Competition and Consumer Commission (ACCC)—seeks to:

- Promote the operation of an efficient and profitable bulk wheat export industry
- Provide a regulatory framework to ensure all bulk wheat exporters have fair and transparent port terminal access; and
- Remove unnecessary regulatory burden on port terminal service providers,

As a regulation under the Competition and Consumer Act 2010, a breach of the code would be a breach of that Act, and may result in serious consequences.

The code commenced on 30 September 2014. It was developed through consultation with industry, including public consultation on an exposure draft in June 2014. Changes to the code were subsequently made to address some industry concerns and to better reflect the government's policy objectives.

A Regulation Impact Statement, approved by Office of Best Practice Regulation (OBPR), was developed prior to introduction of the code.

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Document	Pages	File size
Regulation Impact Statement PDF 	39	1.0 MB
Regulation Impact Statement DOC 	39	1.0 MB

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What does the Code of Conduct require terminal operators to do?

The code of conduct regulates the behaviours of bulk wheat port terminal service providers and exporters, and improves the transparency of port terminal operations.

The code requires port terminal operators to comply with a range of provisions. For example, a port terminal operator is required to:

- allocate available port terminal capacity through a mechanism which applies equally to all exporters;
- publish certain information on its website, such as the amount of capacity available on a weekly and annual basis, and key performance indicators;
- undertake a process for amendments to port loading protocols, including the requirement to consult; and
- comply with dispute resolution processes, among other things.

The above list is indicative only. Interested parties should view the regulation in its entirety at [Competition and Consumer \(Industry Code-Port Terminal Access \(Bulk Wheat\)\) Regulation 2014](#).

The code is able to respond to different market situations by reducing the level of regulation where it is warranted. The Minister for Agriculture and the ACCC both have decision-making roles to exempt particular ports from the more onerous provisions of the code.

Exempt operators will still need to comply with certain provisions of the code to ensure access to services remains transparent. Exempt operators will still be required to:

- publish a daily statement about ships due to load at the port (a shipping stem);
- publish standard information about how they allocate capacity and manage demand for their services; and
- publish standard terms and reference prices available to all exporters.

The above list is indicative only. Interested parties should view the regulation in its entirety at [Competition and Consumer \(Industry Code-Port Terminal Access \(Bulk Wheat\)\) Regulation 2014](#).

Review of the Code of Conduct

A review of the Wheat Port Code of Conduct was required to begin within three years of the code commencing. The Department of Agriculture, Fisheries and Forestry was tasked with conducting this review.

The review was announced on 29 September 2017, and an issues paper was released to start the first round of public consultation. After considering the 14 submissions received and additional input from consultations and research, the review released its interim report on 10 April 2018.

The second round of consultation closed on 25 June 2018. Eleven submissions on the interim report were received, and the review taskforce met directly with over 30 stakeholders—including government agencies, grower and industry representative bodies, exporters and PTSPs—in Brisbane, Sydney, Melbourne, Adelaide and Perth during the second round of consultation.

On 18 October 2018 the department released the final review report.

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Document	Pages	File size
Review of the wheat port access code of conduct PDF 	100	1.7 MB
Review of the wheat port access code of conduct DOCX 	100	2.8 MB

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The review proposed a small number of amendments aimed at improving the operation of the code. These amendments largely stemmed from the ACCC's practical experience in monitoring the code's operation over the first three years. However, the opportunity was also taken to look more deeply into related matters—in particular, proposals from the ACCC to extend coverage of the code to all bulk grains and to apply baseline regulatory access arrangements to vertically integrated up-country storage and handling networks.

The review made 12 recommendations for consideration and the government response was tabled in Parliament on 15 October 2020—[Australian Government response to the Review of the Wheat Port Access Code of Conduct](#).

Wheat Industry Advisory Taskforce

The Wheat Industry Advisory Taskforce website was archived in December 2014. Content is available on the National Library of Australia's Trove web archive

Wheat Industry Special Account

The Wheat Industry Special Account was created through amendments to the Act in 2012. Funds held by Wheat Exports Australia at the time of its abolition were credited to this account, to be used for

activities which benefit the wheat export industry. With the repeal of the Act in 2014 the special account was abolished and the funds transferred to the GRDC under an ad hoc grant for activities which benefit the wheat export industry.

Source: <https://www.agriculture.gov.au/agriculture-land/farm-food-drought/crops/wheat>